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April 20, 2018
Law 353D
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Where Am I? Acknowledging indigenous Place in the Prairies
Artist Rationale

"Canadian national identity," writes Bonita Lawrence, "is deeply rooted in the notion of Canada as a vast northern wilderness, the possession of which makes Canadians unique and pure."¹ This identity is contingent, Lawrence continues, on erasure of the histories of Indigenous nations and subdual of the circumstances under which the Crown acquired land in Canada, through the "the forcible and relentless dispossession of indigenous peoples, the theft of their territories, the imposition of legislations and policies designed to effect their total disappearance as peoples."² The idea that Canadian lands consisted of "unoccupied wilderness" was essential to "earlier assertions of legal fictions of discovery and terra nullius" - and other policies that Jacinta Ruru has called the "legal magic" through which colonial governments assert sovereignty.³ But if colonial governments can weave legal narratives to assert sovereignty, Ruru queries, surely "Indigenous peoples ought to be able to similarly find justice in law to justify ownership of their lands and natural resources."⁴ This, Ruru argues, ought to be the starting point of addressing Indigenous property rights, with land in crown possession "assumed to be

¹ Bonita Lawrence, "Rewriting Histories of the Land: Colonization and Indigenous Resistance in Eastern Canada" in Sherene H. Razack, ed, *Race, Space, and the Law: Unmapping a White Settler Society* (Toronto: Between the Lines, 2002) 23 at 24.

² *Ibid.*

³ Jacinta Ruru, *Settling Indigenous Place: Reconciling Legal Fictions in Governing Canada and Aotearoa New Zealand's National Parks* (PhD Thesis, University of Victoria Faculty of Law, 2012) at 195.

⁴ *Ibid* at 196.

Indigenous land"⁵ rather than Indigenous nations having to assert then prove title to land in Crown possession.

Writing prior to the decision of *Tsilhqot'in Nation v. British Columbia*⁶, Rum considers both the court's reticence to declare aboriginal rights, and colonial nations attempts to erase the presence of Indigenous nations through conceiving narratives of the land as "unoccupied wilderness".⁷ It is an exercise she describes as "the smothering of Indigenous place with colonial space."⁸ While specifically considering the reconfiguration of place into national parks, Ruru notes a larger pattern of "willful blindness and arrogance" in how "Europeans viewed Indigenous lands as empty and thus capable of becoming colonial place with marginalised Indigenous places in ringfenced reserves and land blocks."⁹ She is careful, however, to acknowledge that this colonial exercise in erasure does not negate the real resistance and resilience of the Indigenous nations on which it is focused.

We see this colonial narrative of "space" not "place" play out in cases such as *Delgamuukw v. British Columbia*¹⁰ and *Tsilhqot'in*, which illustrate both the assertions of Indigenous place against notions of colonial space in British Columbia, and the Crown's continued investment in maintaining this space, even at the expense of the "sovereignty, agency, and property rights"¹¹ of the claimants. Also apparent is the court's struggle to hold Indigenous legal traditions alongside the common law, but often failing and instead trying to fit these traditions into common law understandings. To try and shoehorn Indigenous legal traditions into

⁵ *Ibid.*

⁶ [2014] 2 SCR 257, 2014 SCC 44 [*"Tsilhqot'in"*].

⁷ *Supra* note 3 at R6.

⁸ *Ibid.*

⁹ *Ibid.*

¹⁰ [1997] 3 SCR 1010, 153 D.L.R. (4th) 193 [*"Delgamuukw"*].

¹¹ *Supra* note 3 at 87.

the common law framework is at best an awkward exercise. As John Burrows notes, "[c]ommon law understandings cannot always be appropriately read into Indigenous legal traditions," noting that "a multi-juridical approach" would be much better suited for engagement with "different legal. ... construct[s]." ¹²

In *Delgamuukw* the court takes a step towards a multi-juridical approach, stating that "common law rules of evidence should be adapted to take into account the sui generis nature of aboriginal rights." ¹³ Yet, while the existence of aboriginal title is recognized in *Delgamuukw*, and awarded in *Tsilhqot'in*, both cases proceed from the unquestioned acceptance of Crown sovereignty and underlying title to the disputed land—a position diametrically opposed with claimants' position that they never surrendered their land or sovereignty to the crown. ¹⁴ Even in acknowledging Aboriginal title, the court's perspective is filtered through the lens of colonial space.

The cases and class discussion highlighted for me – as I'm sure for others – the ways in which litigation and judicial decision-making privilege particular narratives of ownership and rights, narratives which are supported by evidence in the expected form. What was especially valuable, listening to the guest speakers, was gaining a sense of the context in which these actions were started and advanced, and the strategies that communities and their representatives used to disrupt colonial narratives and urge decision makers to consider a broader scope of evidence. It was encouraging to hear from practitioners and individuals approaching the law with a wider perspective than what we typically encounter in law school, especially when thinking

¹² John Burrows, *Canada's Indigenous Constitution* (University of Toronto Press, 2000) at 252.

¹³ *Supra* note 6 at para 3. See also para 82.

¹⁴ See e.g. Michael Jackson, *The Spirit in the Land: The Opening Statement of the Gitksan and Wet'suwet'en Hereditary Chiefs in The Supreme Court of British Columbia* (Gabriola Island: Reflections Gabriola, 1987) at 1.

about how one might amplify a client's perspective and voice in the courtroom. As a law student, it is easy to become accustomed to a myopic view of "the law"-but of course the common law is not so monolithic or eternal as the caselaw might have us believe.

For this project, I wanted to take the opportunity to think about "space, place, and the law" with Ruru and Lawrence's writings in mind. I chose to paint prairie scenes from Southern Alberta and Eastern Montana. I grew up between Alberta and Montana. Stories of my great grandparent's homesteading and ranching endeavours were a common topic with my family. On days with my dad he might turn to my sister and I and say (perhaps a bit whimsically), "Daughters, let's walk the land!" before bundling us into his truck to get out of the city. I recall walking around my grandpa's farm as a kid with him, and as we walked he would talk about his own experience growing up in the country, telling stories of his own grandmother and grandfather who came from Denmark to homestead. I never questioned our place on that land and I never considered, until I was older, to whom that land had belonged before my great grandparents arrived and applied for their homestead. It was only as an adult that I learned that where I grew up is the traditional territory of the Treaty 7 nations, including the Siksika, the Piikani, and Kainai First Nations, the Tsuut'ina First Nation, and the Stoney Nakoda- including the Chiniki, Bear Paw, and Wesley- First Nations. The area is also home to Metis Nation of Alberta, Region III.

The painting of Southern Alberta is not of my grandpa's farm- although he did own ranch not far from there. Rather, it's a view from a road that I drove down often as a kid and later as a teenager on my way from Calgary to Kananaskis. It is a view I recall from a pull-out West from Calgary, along Bow Valley Trail, just east of the Stoney Nakoda Reservation in southern Alberta. What I did not know before researching the piece, is that the place where I would stretch

my legs - the old Methodist church - was just shy of Morley and the Stoney Indian Reserves Nos. 142, 143, and 144, established after the Stoney Nakoda signed Treaty 7 at Blackfoot crossing in 1877.¹⁵

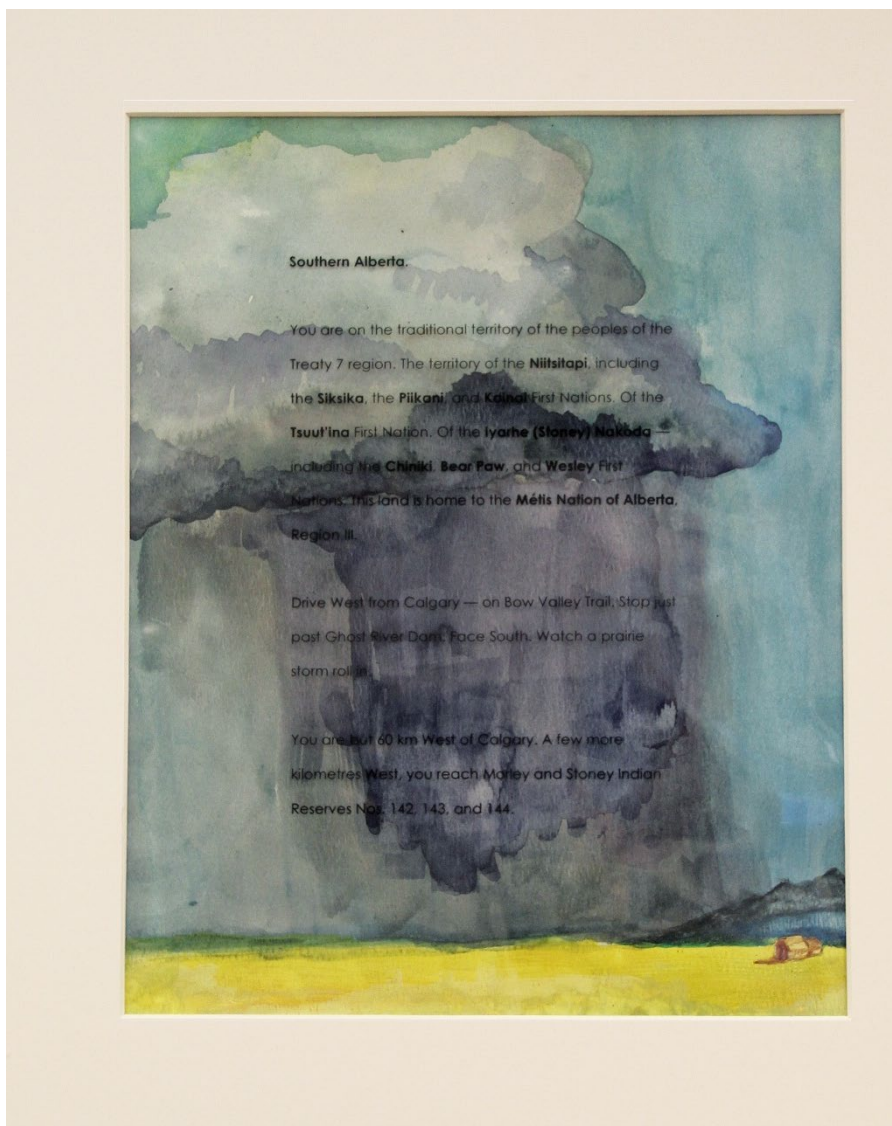
The second piece is the view from camp at the American Prairie Reserve (APR), in Phillips county, eastern Montana. This area is the traditional territory of the Aaniiih (Gros Ventre), Aamsskaapikani (Piikani), Nakoda, and Apsaalooke (Crow) peoples. The Fort Belknap Reservation is the current homeland of the Gros Ventre (Aaniiih) and the Assiniboiné (Nakoda) Tribes. I used to work in the yurt camp there, and spent many, many hours looking north towards the Little Rockies and the Fort Belknap Reservation in the distance - without actually knowing where I was looking. The reserve was created by agreement signed with the United States Government on October 5, 1895.¹⁶ Now the Fort Belknap community has a largely agricultural based economy, and elders, as well as students from the Aaniiih Nakoda College, are amongst the partners working with APR to reintroduce bison and establish sustainable management of grasslands in the region.

Since moving to British Columbia, starting my legal studies, and this past term, I have learned whose land I am currently a visitor too - the Tsleil-Waututh, Skw̓w̓mesh Uxwumixw (Squamish), and xwm̓; }0kw; }y; }m (Musqueam) Nations - but I remained fairly ignorant of whose traditional territories I was born and raised on. In thinking about this it became apparent the many ways in which I have been active participant in projecting notions of colonial

¹⁵ Hugh A. Dempsey, *Treaty Research Report - Treaty Seven (/877)* (Ottawa: Indigenous & Northern Affairs Canada, 1987) online at: <<https://www.aadnc-aandc.gc.ca/eng/1100100028789/1100100028791>>.

¹⁶ Vine Deloria Jr. & Raymond DeMallie, *Documents of American Indian Diplomacy: Treaties, Agreements, and Conventions, 1775-1979 Volume I* (Norman: University of Oklahoma Press, 1999) at 386.

space onto the land that I call home. As such, I wanted to create a project that would flip the perspective with which I have so often viewed the prairie (open empty space) and confront the viewer with a fuller picture of the places depicted - a view that makes us look at the landscape through the lens of place. It is shift that is both temporal and personal - an exercise in looking out across the prairie and knowing, as best I can, where I am.

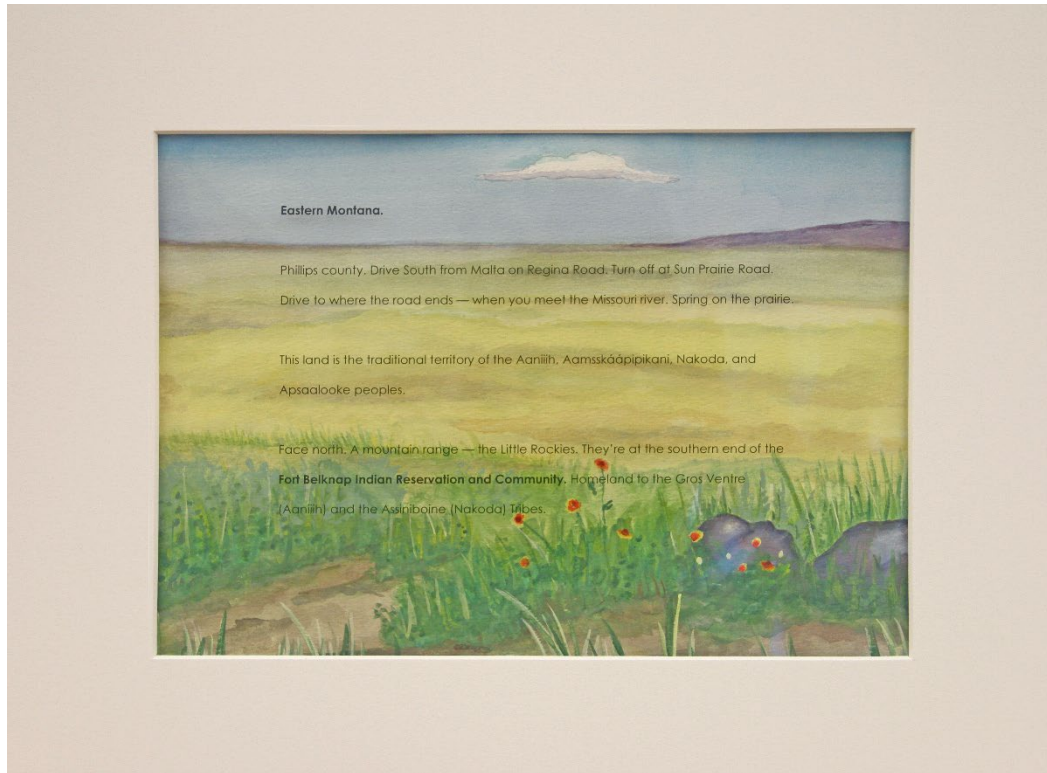


Southern Alberta.

You are on the traditional territory of the peoples of the Treaty 7 region. The territory of the **Niitsitapi**, including the **Siksika**, the **Piikani**, and **Kainai** First Nations. Of the **Tsuut'ina** First Nation. Of the **Iyarhe (Stoney) Nakoda** - including the **Chiniki**, **Bear Paw**, and **Wesley** First Nations. This land is home to the **Metis Nation of Alberta**, Region III.

Drive West from Calgary- on Bow Valley Trail. Stop just past Ghost River Dam. Face South. Watch a prairie storm roll in.

You are but 60 km West of Calgary. A few more kilometres West, you reach Morley and Stoney Indian Reserves Nos. 142, 143, and 144.



Eastern Montana.

Phillips county. Drive South from Malta on Regina Road. Turn off at Sun Prairie Road.

Drive to where the road ends - when you meet the Missouri river. Spring on the prairie.

This land is the traditional territory of the Aaniiih, Aamssk66pipikani, Nakoda, and Apsaalooke peoples.

Face north. A mountain range - the Little Rockies. They're at the southern end of the **Fort Belknap Indian Reservation and Community**. Homeland to the Gros Ventre (Aaniiih) and the Assiniboine (Nakoda) Tribes.